

Calendar Line 1

Case Name: Tai Le et al. v. Vinh Hong

Case No.: 25CV468482

This is an action for constructive and retaliatory eviction brought by plaintiffs Tai Le, individually and as guardian ad litem for minors Thy Le and Thao Le (Plaintiffs) against Vinh Hong (Hong) and Doe defendants.

Plaintiffs' original and still operative complaint alleges nine causes of action: (1) violations of the San Jose Municipal Code; (2) unfair business practices; (3) breach of the implied warranty of habitability; (4) breach of the covenant of quiet enjoyment; (5) negligence; (6) negligent infliction of emotional distress; (7) constructive eviction; (8) retaliation (Civ. Code, § 1942.5); and (9) negligence (alleged by minor Thy Le only). There are no exhibits attached to the complaint.

At issue is Hong's motion to strike portions of the complaint, which Plaintiffs oppose.

Legal Standard for Motions to Strike

Under Code of Civil Procedure section 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. Irrelevant matter includes (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, and (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc., § 431.10, subds. (b), (c).) A motion to strike is not a "procedural 'line item veto' for the civil defendant." (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.) The grounds for a motion to strike must appear on the face of the challenged pleading or from matters of which the court may take judicial notice. (Code Civ. Proc., § 437, subd. (a); *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913.) In ruling on a motion to strike, the court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 (*Turman*).) California Rules of Court, rule 3.1322(a) requires that "[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." (Cal. Rules of Court, rule 3.1322(a).)

As with a demurrer, the court cannot consider extrinsic evidence in ruling on a motion to strike. The court has considered the declaration from Hong counsel James Huan Ly only to the extent it discusses the meet and confer efforts required by statute. The court has not considered the declaration from Plaintiffs' counsel Jake Huynh, or the exhibit attached to the opposition.

Discussion

Hong moves to strike the request for "punitive damages" in paragraph 66 of the complaint (part of the eighth cause of action) and the request for "punitive damages pursuant to Civil Code § 3294 against Defendants and/or as otherwise allowed by law" in paragraph 7 of

the complaint's prayer for relief. (See Hong's notice of motion at p. 2:2-6.) Those are the only references to punitive damages in the complaint. The sole basis for the request for punitive damages in the prayer is therefore the eighth cause of action for violation of Civil Code section 1942.5.

Civil Code section 1942.5 authorizes punitive damages "in an amount of not less than one hundred dollars (\$100) nor more than two thousand dollars (\$2,000) for each retaliatory act where the lessor or agent has been guilty of fraud, oppression, or malice with respect to that act." (Civ. Code § 1942.5, subd. (h)(2).) "In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. These statutory elements include allegations that the defendant has been guilty of oppression, fraud, or malice. 'Malice' is defined in the statute as conduct 'intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.' 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. 'Fraud' is 'an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.'" (*Turman, supra*, 191 Cal.App.4th at p. 63, internal citations omitted.)

Paragraph 66 of the complaint alleges, "Defendant undertook the retaliatory acts alleged herein fraudulently, oppressively, and maliciously and in conscious disregard to Plaintiffs' rights. Plaintiffs are, thus, entitled to recover statutory damages pursuant to Civil Code § 1942.5, and to recover punitive damages from Defendant in an amount according to proof." Merely repeating terms from the statute, without more, is insufficient. A complaint must include specific factual allegations showing how the defendant's conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages. (*Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1193.) Punitive damages may not be pleaded generally.

Hong's motion to strike the reference to punitive damages in paragraph 66 and the entirety of paragraph 7 of the complaint's prayer is granted.

As with a demurrer, a plaintiff bears the burden of demonstrating that an amendment could cure the defect identified by a motion to strike. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 (*Shaeffer*).) Plaintiffs' opposition does not meet this burden. It asserts that the motion should be denied, and makes only a generic request for leave to amend if there are any "perceived defects." The opposition also incorrectly asserts that Plaintiffs can recover punitive damages under the first (violation of certain sections of the San Jose Municipal Code), third (breach of the implied warranty of habitability), and fifth causes of action (negligence), as well as the eighth. While that may have been true in the abstract before the case was filed, Plaintiffs are bound by their pleading. And the sole request for punitive damages is in paragraph 66 of the eighth cause of action.

Because this is the first pleading challenge to be heard in this case, the court will grant Plaintiffs leave to amend the request for punitive damages in paragraph 66 of the eighth cause of action. The court does not grant leave to add any new parties or causes of action, and also

does not grant leave to add any requests for punitive damages as to other existing causes of action. If Plaintiffs wish to request punitive damages as part of any cause of action other than the eighth, that will require a noticed motion for leave to amend.

Conclusion

Defendant Hong's motion to strike the request for punitive damages in paragraph 66 of the complaint and to strike paragraph 7 of the complaint's prayer in its entirety is GRANTED WITH LEAVE TO AMEND. Any amended pleading must be filed and served no later than July 10, 2026.

The court will prepare the order.

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Calendar Line 2

Case Name: Alan Pineda v. Mike Counsil Plumbing LLC

Case No.: 25CV474386

Specially appearing defendant Mike Counsil Plumbing LLC moves to quash service of summons. Notice is proper and the motion is opposed by plaintiff Alan Pineda.

Plaintiff filed the original and still operative complaint in September 2025, alleging the following causes of action against Defendant: (1) breach of contract; (2) wrongful termination; (3) retaliation; (4) false advertising and misrepresentation; (5) failure to provide written offer letter; (6) constructive discharge; and (7) lost wages.

Legal Standard

A motion to quash under Code of Civil Procedure section 418.10, subdivision (a)(1) contests personal jurisdiction where the statutory requirements for proper service are not met. (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 390.)

When a defendant contends that service failed to place them within the trial court's jurisdiction, the plaintiff must provide evidence of effective service. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 387.) A proof of service declaration will create a presumption of proper service if the declaration complies with all statutory requirements. And that presumption may be rebutted by contrary evidence. (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1163 (*Lebel*); *Fernandes v. Singh* (2017) 16 Cal.App.5th 932, 941, fn. 6.)

A proof of service must identify the time, place, and manner of service, in addition to the individual served and the individual's title or authority to accept service. (Code Civ. Proc., § 417.70, subd. (a).) Service on a corporation requires delivery of the summons and complaint to an individual who may be served on behalf of the corporation (e.g., an agent for service of process or a general manager). (Code Civ. Proc., § 416.10.)

Discussion

Defendant argues that service was improper because (1) the filed proof of service is incomplete; and (2) service was rendered on an individual not authorized to receive service of process.

Plaintiff filed an affidavit of service in October 2025 that was not on the mandatory proof of service of summons form (POS-010). The clerk's office accepted the document for filing, but attached a civil filing rejection letter indicating that a "Proof of Service Summons requires mandatory form POS-010." Plaintiff filed the mandatory POS-010 form in November 2025. That November filing identifies the documents served, but omits the date, time, and manner of service. It further omits the identity of the individual served and that person's authority to accept service. (The court takes judicial notice of these court records on its own motion. (Evid. Code, § 452, subd. (d).)) The proof of service is defective under Code of Civil Procedure section 416.10. It therefore does not create a rebuttable presumption of proper service. (*Lebel, supra*, 210 Cal.App.4th at p. 1163.)